

Tentative Rulings
May 11, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Prior to the hearing, you can email the completed Stipulation to Department S-17 at jgarcez@sb-court.org. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Wells Fargo Bank, NA v. DeLeon*, Case No. CIVSB2519812
Plaintiff's Motion for Judgment on the Pleadings
5/11/26, 9:00 a.m., Dept. S-17

CONTINUE the matter to allow movant to satisfy the meet-and-confer requirements.

Prior to a motion for judgment on the pleadings, a party is required meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is the subject of the motion . . . for the purpose of determining whether an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings." (Code Civ. Proc., § 439(a) [emphasis added].) Merely sending a letter informing the party that a motion is forthcoming is insufficient.

Here, the supporting declaration indicates only that a letter was sent with no response. (See Lopez Decl., ¶¶4-6 & Exh. 1.) Thus, the Court would continue the matter to allow a supplemental declaration showing compliance. Movant will file a supplemental declaration at least ten days before the next hearing with a courtesy copy lodged directly in the department.

15. *Ramirez v. Biscomerica Corp*, Case No. CIVSB2531907
Defendant's Motion to Compel Arbitration and Stay Proceedings
5/11/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Objections: The Court would **OVERRULE** Plaintiff's evidentiary objections, numbers 1-11.

As to the Motion: The Court would **GRANT** the motion to compel arbitration and stay proceedings. The Class Claims are therefore **DISMISSED** without prejudice.

Case Summary

This is a wage-and-hour class action. Plaintiff alleges that he worked for Defendant from approximate 2023, through August of 2025. He performed various duties as a mixer. He alleges that Defendant engaged in a pattern and practice of wage abuse against hourly, non-exempt workers, including requiring off-the-clock work and failure to provide all required meal and rest breaks, among other things. As such, he filed suit on October 28, 2025, alleging violations relating to (1) minimum wages; (2) overtime; (3) meal periods; (4) rest breaks; (5) wage timeliness; (6) accurate wage statements; (7) final pay; and (8) reimbursements; as well as (9)